

§ 9.21 Voluntary and informal admissions; encouragement of.

(a) It shall be the duty of all state and local officers having duties to perform relating to the mentally ill to encourage any person suitable therefor and in need of care and treatment for mental illness to apply for admission as a voluntary or informal patient.

(b) No requirement shall be made by rule, regulation, or otherwise as a condition to admission or retention that any person applying for admission shall have the legal capacity to contract.

(c) A person requesting admission to a hospital, who is suitable for admission on a voluntary or informal status, shall be admitted only on such a voluntary or informal status. The hospital shall, in such case, have the discretion to admit the person on either such status, except that, if the person specifically requests admission on an informal status and is suitable therefor, he shall be admitted only on such informal status.